



CITY ENGINEERING
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

MEMO

DATE: April 13, 2018
TO: Mayor Marian J. Orr; City Council
FROM: Sam Berta, Staff Engineer

SUBJECT: Goat Grazing Project

This PSA is to establish a contract between Goat Green, LLC and the City of Cheyenne in the amount of \$100,000.00. This contract will provide vegetative control measures along the Dry Creek basin and Crow Creek basin. This is an economic and environmentally sound approach to the existing over-vegetated creek areas.

Respectfully,

Sam Berta
Staff Engineer

GOAT GREEN, LLC

Donny Benz 970-219-0454 benydonny@yahoo.com
Lani Malmberg 970-219-0451 ewe4icbenz@aol.com
PO Box 381 Wellington, CO 80549 Fed EIN: 27-0439103



GOAT GRAZING for vegetation management: Cheyenne Crow and Dry Creeks - Flood, erosion, and mosquito site mitigation, noxious weed and vegetation management, re-seeding where designed, public interface, public education.

City of Cheyenne, Engineer Office 307-637-6290
Contact: Sam Berta cell 307-630-6470 sberta@cheyennecity.org
2101 O'Neil
Cheyenne, WY 82001

Single source professional goat grazer, Goat Green, LLC

We are the only source for this function within a reasonable distance of Cheyenne. There may be more than one source of grazing goats in the open market, nationally, but for reasons of function, service, and practicality, we are the only vendor available to Cheyenne.

We started City of Cheyenne on the goat program in 1999 (as Ewe4ic Ecological Services). We know much of the history, politics and changes over these years. We know, and have developed great working relationships with land owners, the police department, animal control, and they all know us, and our contact information. We have developed strategies for bad weather events, fireworks, middle-of-the-night mishaps for all areas of town, knowing where trouble will arise and how to best avoid it. We have had great working relationships with homeless and train hoppers for this duration. Moreover, our working dogs and goats have been to Cheyenne once/year their entire lives and they know the town too, which is extremely valuable.

These details make us the best qualified project managers for safety of all animals and people, and traffic involved, highest positive public interface factors, highest quality grazing work performed, with the least amount of City personnel time and management required to guide daily work and answer questions. We are local Wyoming ranchers; a Woman owned business.

We are the longest running successful professional goat graziers in the US (began 1996). We are the only US graziers who have higher education (Lani – Environmental Restoration, Botany, Biology and Masters in Weed Science. Donny – business mgmt and finance and MBA). The education (**SCIENCE** knowledge) and practical experience of managing all animals in all 4 seasons in 16 western states for the past 23 years in a myriad of conditions (**ART** of using animals for our high-tech machine in any setting) and respect (**SPIRITUAL**) for the land, land-owners and managers, and the local culture.

Most important, we have experience in all 24 hours of the clock of thousands of things gone wrong, that we handled immediately.

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

CONTRACT # _____
PROJECT NAME – GOAT GRAZING

PREAMBLE

This Agreement, made and entered into this _____ day of _____, 2018, (“Effective Date”) by and between the City of Cheyenne, Wyoming, a municipal corporation, hereinafter referred to as the “City,” and Goat Green, LLC., a limited liability company, hereinafter referred to as the “Consultant.”

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK:**

The Consultant agrees to provide goat vegetation management services (“Goat Services”) in accordance with the terms and conditions set forth on Exhibit A, incorporated by reference and expressly made a part hereof. Goat Services shall be provided at such locations as specified by the City.

2. **TIME OF PERFORMANCE:**

The Goat Services shall be completed in accordance with the schedule provided in Exhibit A. Any extensions of the time limit set forth in Exhibit A must be agreed upon in writing by the parties.

3. **CONSULTANT RESPONSIBILITY:**

The Consultant shall be responsible for the professional quality and timely completion of Goat Services, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies.

4. **GIS MAPS AND DIGITAL DATA:**

If the Consultant uses any maps, coverages, images, or other digital data created by the *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)* for the project specified in Exhibit A, the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

5. **GIS DATA LIMITATION AND DISCLAIMED LIABILITY**

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user. The CLCCGIS cannot vouch for any unauthorized use.

6. **COMPLIANCE WITH LAWS:**

The Parties agree that they will perform their obligations as provided in this Agreement in

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

accordance with applicable laws and ordinances.

7. **DRUG-FREE WORKPLACE:**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All consultants under contract with City of Cheyenne, and their employees and subcontractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the contract. It is the responsibility of the Consultant to familiarize himself with the requirements of this policy and to inform all his employees and sub-contractors of the requirements and ensure their compliance. If the Consultant, his employees or sub-consultants are found in violation of this policy, the contract may be terminated.

8. **INDEMNIFICATION / HOLD HARMLESS:**

The Consultant agrees to indemnify and hold harmless the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or subcontractors in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

9. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation, and shall provide the City with a copy of the endorsements.

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

The Consultant is responsible for insuring its goats, vehicles, and other personal property against loss, damage or destruction by fire or other hazards and Consultant shall insure, defend and indemnify the City against all such losses.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Consultant shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

10. DUTIES, RESPONSIBILITIES AND LIMITATIONS OF AUTHORITY OF THE CONSULTANT.

The Consultant shall provide Goat Services in accordance with commonly accepted professional standards relating to such services. This responsibility shall extend to supervision and responsibility for the actions of sub-contractors or consultants working for the Consultant.

11. MINORITY BUSINESS ENTERPRISES:

All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, sexual orientation or sex.

12. COMPENSATION:

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City on a lump sum basis, and the City agrees to pay Consultant according to the fee schedule set forth in Exhibit A. The amounts of all such payments shall be based upon the Consultant's progress, verified by the City, in completing the Goat Services as described in Exhibit A. In no event shall the total amount billed by the Consultant to the City pursuant to this Agreement exceed the total project contract amount specified in Exhibit A. Final payment shall be made following acceptance of the work by the City. A portion of the payment may be held until any claims are resolved. The City disclaims any responsibility under the last paragraph of Exhibit A other than the duty to grant Consultant

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

reasonable use of City owned land and rights-of-way for the construction of pens.

13. CITY REPRESENTATIVE:

Prior to commencement of work, the City will designate in writing, a City Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the City Representative.

14. INDEPENDENT CONTRACTOR:

The Consultant shall function as an independent contractor for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City of Cheyenne or to incur any obligation of any kind on the behalf of the City of Cheyenne.

15. TAXES:

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL:

The City's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the City's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT:

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES:

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages;
- b. Treat the Agreement as continuing and require specific performance; or
- c. Avail itself of any other remedy at law or equity.

19. TERM:

The term of this Agreement shall be from the date on which this Agreement is executed by both parties hereto until October 31, 2018, unless terminated earlier pursuant to the

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

provisions of this Agreement. This term of this Agreement may only be extended by a written document executed by both parties, in all instance in accordance with City policies and procedures.

20. TERMINATION BY CITY:

The City Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this contract in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected, and
- b. Deliver to the City Representative within five (5) days all data, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done to date of termination. This Agreement may be immediately terminated by either party with cause.

21. ADDITIONAL REMEDIES OF CITY:

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant.

22. CONFLICT OF INTEREST:

In entering this Agreement, the Consultant covenants that it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the Consultant covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The Consultant certifies that no one who has or will have any financial interest under this contract is an officer or employee of the City.

23. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach thereof.

24. SEVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of this Agreement, which shall continue in full force and affect.

25. SUCCESSORS AND ASSIGNS:

All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

26. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the Consultant from subcontracting to a qualified subcontractor.

27. THIRD PARTY RIGHTS:

The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

28. AMENDMENT:

This Agreement and Exhibit A may only be amended by a written document executed by both parties, in all instance in accordance with City policies and procedures.

29. GOVERNMENTAL IMMUNITY:

The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq.*

30. GOVERNING LAW:

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this agreement and the venue shall be the First Judicial District, Laramie County, Wyoming.

31. ENTIRETY OF AGREEMENT:

This Agreement consisting of 7 pages, and Exhibit A, consisting of 2 pages, respectively, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

[SIGNATURE PAGE FOLLOWS]

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

CITY OF CHEYENNE

(SEAL)

Attest:

By: _____

Marian J. Orr, Mayor

By: _____

Carol Intlekofer, City Clerk

Date: _____

GOAT GREEN, LLC

By: _____

Print Name: _____

Date: _____

PROFESSIONAL SERVICES AGREEMENT

Project Name: Goat Grazing Project

EXHIBIT A

Scopes of Work for Crow Creek and Dry Creek Basin Goat Grazing

GOAT GREEN, LLC

Donny Benz 970-219-0454
Lani Malmberg 970-219-0451

benydonny@yahoo.com
ewe4icbenz@aol.com

PO Box 381
Wellington, CO 80549

Fed EIN: 27-0439103

Goat Brigade Project

GOAT GRAZING for vegetation management: Cheyenne Crow Creek

City of Cheyenne, Engineer Office 307-637-6290
Contact: Sam Berta cell 307-630-6470 sberta@cheyennecity.org
2101 O'Neil
Cheyenne, WY 82001

Flood, erosion, and mosquito site mitigation, noxious weed and vegetation management, re-seeding where designed.

Managed goat grazing for vegetation management to attain desired site-specific goals. Goats will be contained in prioritized areas with portable electric fence and trained Border Collie dogs.

Proof of insurance submitted upon request; \$2,000,000 commercial liability is carried.

We request permission for our camper to be parked on-site, to be near animals at all times to ensure project success.

It is critical that we have safe areas for the goats at nights. We are responsible for our animals and professional goat herding, however, we will not be held accountable for misbehaving citizens, fireworks aimed at goats, attacking dogs off leash, or acts of God ie., floods, hail, high winds, tornados, etc.

Goats: Approximately July 9, 2018 through August 13, 2018

* Mobilization and setup fee	\$ 2,814.00
* Trucking	2,082.00
* Goats 220 head @ \$5.62/head/day	
\$ 1,236/day @ 36.5 days	45,104.00
TOTAL	\$ 50,000.00

* Prices reflect 3% cost of living increase

GOAT GREEN, LLC

Donny Benz 970-219-0454
Lani Malmberg 970-219-0451

benydonny@yahoo.com
ewe4icbenz@aol.com

PO Box 381
Wellington, CO 80549

Fed EIN: 27-0439103

April 12, 2018

Proposal 18-412

Goat Brigade Project

GOAT GRAZING for vegetation management: Cheyenne Dry Creek

City of Cheyenne, Engineer Office 307-637-6290
Contact: Sam Berta cell 307-630-6470 sberta@cheyennecity.org
2101 O'Neil
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